

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #15	CCRB Case #: 201706805	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/05/2016 10:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/5/2018	Precinct: 106		
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Thu, 08/17/2017 1:06 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Cutler	21219	958458	106 PCT
2. POF Abiola McIntosh	00457	949306	106 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Cutler	Abuse: Police Officer Joseph Cutler threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POF Abiola McIntosh	Abuse: Police Officer Abiola McIntosh threatened to arrest § 87(2)(b)	B . Unfounded

Case Summary

On August 10, 2017, § 87(2)(b) emailed the IAB Command Center generating Log No. 17-30740, on behalf of her husband, § 87(2)(b). The complaint was received at the CCRB on August 17, 2017.

On August 5, 2016, at approximately 10:30am, at § 87(2)(b) in Queens, § 87(2)(b) observed his neighbor, § 87(2)(b) setting wooden posts ten inches into his land property line.

§ 87(2)(b) called 911 to report that § 87(2)(b) was trespassing into his property. Two officers, identified via the investigation as PO Joseph Cutler and PO Abiola McIntosh, both of the 106th Precinct, responded to the radio run. § 87(2)(b) walked with the officers to the backyard in front of his garage. PO Cutler told § 87(2)(b) to stay in front of the garage while he and PO McIntosh go to the back of the garage and speak to § 87(2)(b).

After approximately 10 minutes, both officers came back to the front of the garage and PO Cutler told § 87(2)(b) that this is a civil matter and that there is nothing they can do. § 87(2)(b) told PO Cutler that since § 87(2)(b) was trespassing on his property, he was going to exercise his rights and remove the posts off of his property and place them back onto § 87(2)(b) side of the property. PO Cutler allegedly responded, "If you do that, I will take you to jail" (**Allegation A**). § 87(2)(b) did not respond and the officers left the location.

Mediation, Civil and Criminal Histories

- On September 12, 2017, § 87(2)(b) rejected mediation as an alternative to solve this complaint § 87(2)(b).
- On October 19, 2017, a request was made to determine if a Notice of Claim was filed in regards to this incident. Confirmation from the Office of the New York City Comptroller will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) and first complaint involving § 87(2)(b) (Board Review 02)
- PO Cutler has been a member of the service for 2 years and this is the first CCRB complaint filed against him.

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Joseph Cutler threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) interacted with PO Cutler at § 87(2)(b) in Queens. § 87(2)(g)

On August 5, 2016, at approximately 10:30am, § 87(2)(b) observed § 87(2)(b) setting wooden posts approximately ten feet into their property line. § 87(2)(b) called 911 because he

believed § 87(2)(b) was trespassing onto his property. PO Joseph Cutler and PO Abiola McIntosh, responded. § 87(2)(b) showed the officers the survey of his house which outlines property boundaries. PO Cutler told § 87(2)(b) that he and PO McIntosh were going to speak to § 87(2)(b) and for him and § 87(2)(b) to stay in front of their garage. After approximately ten minutes, both officers approached § 87(2)(b) and § 87(2)(b). PO Cutler told § 87(2)(b) that there is nothing they can do as the incident was a civil matter. § 87(2)(b) stated that since § 87(2)(b) was trespassing he was going to exercise his rights and remove the wooden posts from his property and put it back on § 87(2)(b) property. PO Cutler responded, “If you do that, I will take you to jail.” (Board Review 03)

§ 87(2)(g)
Mrs. § 87(2)(b) alleged that PO McIntosh issued the same threat of arrest to § 87(2)(b) during their conversation. (Board Review 04)

PO Cutler acknowledged he responded to the § 87(2)(b)'s residence on the incident date but had no further recollection. During PO Cutler's testimony at the CCRB, the undersigned made several attempts to try and help him remember the incident including giving PO Cutler a brief overview of the same and having PO Cutler review his memo book entries on the incident date. However, these attempts were fruitless. (Board Review 05)

PO McIntosh had issues recalling this incident but stated she vaguely remembered responding to a radio run concerning a dispute about property. PO McIntosh stated the caller, identified via the investigation as § 87(2)(b) uttered a statement about breaking his neighbor's property, and PO McIntosh informed § 87(2)(b) that would be considered criminal mischief. PO McIntosh denied threatening to arrest § 87(2)(b). PO McIntosh did not recall if PO Cutler threatened to arrest § 87(2)(b). (Board Review 06)

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§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: Abuse of Authority: Police Officer Abiola McIntosh threatened to arrest

§ 87(2)(b)

It is undisputed that § 87(2)(b) interacted with PO McIntosh at § 87(2)(b) in Queens.
§ 87(2)(g)

§ 87(2)(b) testified that when § 87(2)(b) stated he was going to remove § 87(2)(b) wooden posts from his property and back onto his neighbor's property, PO McIntosh responded, "If you do that, we are going to take you to jail."

§ 87(2)(b) testified that PO Cutler was the only officer who threatened to arrest him during his interaction with the officers.

PO McIntosh denied threatening to arrest § 87(2)(b). She testified to telling § 87(2)(b) that if he did break § 87(2)(b) property, it would be considered criminal mischief.

As previously noted, PO Cutler did not have any recollection of the incident.

§ 87(2)(g)
it is recommended that **Allegation B** be closed as **Unfounded**.

Squad: 15

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date